

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-8143

ORDER OF SUMMARY SUSPENSION

TO: Emmet Franklin Bellville III

The State Board of Licensed Professional Counselor Examiners ("the Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS AS FOLLOWS:

1. Emmett Franklin Bellville III ("Respondent") has been licensed as a professional counselor in the State of Colorado since June 20, 2006. Respondent's credential number is LPC.0004358.
2. The Board has jurisdiction over Respondent and the subject matter herein.
3. In October 2018, the Board received a complaint ("Case No. 2018-8143") alleging substance abuse on the part of Respondent.
4. In January 2019, Respondent was ordered to submit to a mental or physical evaluation to be conducted by or through Peer Assistance Services ("PAS") per Board Order Pursuant to Section 12-43-224(2)(d), C.R.S. ("Board Order"). The Board Order required Respondent to "contact PAS and schedule an appointment for an evaluation within three (3) calendar days of the date of this Order." The Board Order was signed and executed on January 14, 2019.
5. Upon full investigation of the documents and information presented in regard to Case No. 2018-8143, the Board finds as follows: Respondent failed to schedule and/or complete a mental or physical evaluation in violation of sections 12-43-224(2)(d).
6. Respondent is deemed to have consented to submit to mental or physical examinations when directed in writing by the Board pursuant to section 12-43-224(2)(e), C.R.S.
7. As of the date of this Order, Respondent has failed to contact PAS to schedule or complete the additional evaluation ordered by the Board on January 4, 2019.
8. Respondent has not shown good cause for failure to submit to the evaluation.

9. The Board finds that the Respondent has failed to comply with the Order of the Board directing Respondent to submit to a mental or physical examination.

10. The Board hereby summarily suspends Respondent's license to practice as a licensed counselor pursuant to sections 12-43-224(2)(c)(II)(C), C.R.S.

11. Respondent cannot engage in the practice of professional counseling in the State of Colorado or hold himself out as able to practice professional counseling in the State of Colorado while his license is suspended.

12. Respondent's license to practice professional counseling is summarily suspended until Respondent submits to the required evaluation.

13. Any violation of this Order constitutes a violation of a lawful Board Order and may be grounds for further proceedings pursuant to section 12-43-224, C.R.S. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with this Order.

14. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

15. This Order shall be a public record in the custody of the Board.

THEREFORE, pursuant to the above, IT IS HEREBY ORDERED that under section 12-43-224(2)(c)(II)(C), C.R.S., the license of Emmet Franklin Bellville III to practice professional counseling in the State of Colorado is summarily suspended.

DATED and SIGNED this 15th day of February, 2019.

On behalf of the Colorado State Board of
Licensed Professional Counselor Examiners,



Darcie Magnuson
Interim Program Director